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PROJECT INDIGO

Intellectual Property Ownership and Encumbrance Review

Helios FMCW LiDAR Patent Family — Cobalt Photonics Limited

Prepared by Whitfield Carter LLP for Cobalt Photonics Limited | Dated 5 December 2025

1. Scope and purpose

This report has been prepared to support the warranties to be given by Cobalt Photonics Limited ("Cobalt") in the proposed Patent and Know-How Licence to Tessandri Instruments S.p.A. It reviews the ownership, status and encumbrances of the Helios patent family and the associated know-how. It is based on the register entries at the EPO, USPTO, CNIPA and JPO as at 1 December 2025, the assignment chain provided by Cobalt and the patent-attorney status report from Hartington IP dated 28 November 2025.

2. Patent family overview

The Helios family comprises eleven patent rights: seven granted patents and four pending applications, covering FMCW coherent-detection apparatus, on-chip optical phased-array beam-steering, the coherent receiver architecture, signal-processing methods and the array calibration method. The granted patents are in force in the EPO (validated in DE, FR, GB, NL and IT), the United States, China and Japan.

Right	Jurisdiction	Status	Next renewal
EP3142876B1	EPO (DE/FR/GB/NL/IT)	Granted 2021	Sep 2026
EP3298714B1	EPO (DE/FR/GB/NL/IT)	Granted 2022	Mar 2026
US10,845,617	USPTO	Granted 2020	Nov 2027 (7.5y)
US11,231,094	USPTO	Granted 2022	Jan 2026 (3.5y)
CN112461923B	CNIPA	Granted 2022	Jun 2026
JP6987452B2	JPO	Granted 2021	Dec 2025
EP3501122B1	EPO (DE/FR/GB)	Granted 2023	Apr 2026
EP3712889	EPO	Pending (Art. 94(3))	n/a
US17/884,201	USPTO	Pending	n/a
CN202310914.7	CNIPA	Pending	n/a
JP2023-118842	JPO	Pending	n/a

3. Ownership and chain of title

Cobalt is recorded as the registered proprietor of all seven granted patents and the applicant for the four pending applications. The four founding inventors assigned their rights to Cobalt by deeds of assignment dated between 2018 and 2019; these assignments have been recorded at the EPO and USPTO. We identified one historic recordal gap at CNIPA in respect of EP3142876B1's Chinese counterpart, which Hartington IP has since corrected (recordal confirmed 19 November

2025). Subject to that correction, the chain of title is clean.

4. Encumbrances and existing licences

Our searches did not reveal any registered security interest over the Helios patents. Cobalt has confirmed, and the disclosure exercise records, a single non-exclusive research licence granted to the University of Cambridge limited to academic, non-commercial use. That licence does not permit any commercial exploitation within the proposed Field of Use and is not inconsistent with the exclusive licence to Tessandri.

5. Issues to note for the warranties

Two matters should be disclosed against the licence warranties: (i) pending application EP3712889 is subject to an Article 94(3) EPC inventive-step objection (Hartington IP filed a response on 7 January 2026 and considers it overcome-able by amendment); and (ii) a third-party granted patent, US10,114,202, contains broad FMCW claims — a freedom-to-operate opinion (separate report) concludes the Helios architecture does not infringe. Neither matter undermines Cobalt's ability to grant the exclusive Field-of-Use licence.

6. Conclusion

Subject to the disclosed matters above, Cobalt has good and marketable title to the Helios patent family and the associated know-how, free of any encumbrance inconsistent with the proposed licence, and is able to grant the exclusive licence within the Field of Use and Territory contemplated by the transaction.